# AER (Retail Law) Instrument 2026

National Energy Retail Law · Minimum disconnection amount · Commonwealth of Australia

## 1 · Authority

1.1 This instrument is made under section 111 of the National Energy Retail Law as applied in participating jurisdictions.

Nothing in this document limits a customer's rights under the National Energy Retail Law, the National Energy Retail Rules, or any applicable state instrument. Where this document conflicts with a regulatory obligation, the obligation prevails.

## 2 · Definitions

2.1 In this instrument, "arrears" means amounts payable by a customer to a retailer for the sale and supply of energy that remain unpaid after the pay-by date.

2.2 "De-energisation" has the meaning given by the National Energy Retail Rules.

## 3 · Application

3.1 This instrument applies to retailers under the National Energy Retail Law in participating jurisdictions.

3.2 It supersedes the amount specified in the 2024 instrument from the commencement date.

Records generated under this section are retained for seven years and made available to the AER on request. Team leaders review a sample of screening outcomes each month as part of the quality framework.

## 4 · Minimum disconnection amount

4.1 A retailer must not arrange de-energisation of premises for a customer whose arrears are below the minimum disconnection amount.

4.2 The minimum disconnection amount is $500 (GST inclusive).

4.3 The amount in subsection 4.2 is indexed in accordance with the method published by the AER from time to time.

## 5 · Commencement

5.1 This instrument commences on 1 July 2026.

5.2 Decisions made before commencement are assessed under the instrument in force at the time.